

SENATE No. 2236

The Commonwealth of Massachusetts

PRESENTED BY:

William N. Brownsberger

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to delivery network companies.

PETITION OF:

NAME:

William N. Brownsberger

DISTRICT/ADDRESS:

Suffolk and Middlesex

SENATE No. 2236

By Mr. Brownsberger, a petition (accompanied by bill, Senate, No. 2236) of William N. Brownsberger for legislation relative to delivery network companies. Telecommunications, Utilities and Energy.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to delivery network companies.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The general laws are hereby amended by inserting after chapter 159B the
2 following chapter:-

3 Chapter 159B1/2.

4 DELIVERY NETWORK COMPANIES

5 Section 1.

6 Definitions.

7 For the purposes of this chapter the following terms shall have the following meanings:

8 “Delivery driver”, a person making deliveries of property as arranged through a delivery
9 network company.

“Delivery network company”, a private entity doing business in the Commonwealth which uses a digital network to facilitate the delivery of property to consumers by delivery drivers.

“Delivery driver account”, an account, profile, or other credential which allows a person to use a delivery network company’s network to conduct deliveries as a delivery driver.

"Identifying apparel", a jacket, vest, or other wearing apparel on the upper part of a delivery driver's body as the outermost garment while making deliveries the back of which shall display the word “delivery” in lettering not less than two inches in height in a color that contrasts with the color of the garment; provided that any garment prescribed by a municipality for delivery drivers shall be considered adequate identifying apparel.

“Motorized delivery vehicle”, any vehicle used for the delivery of property on behalf of a private entity that is driven, drawn or assisted by a motor of any kind, including, without limitation, electric and internal combustion motors, provided, that a motorized delivery vehicle shall not mean a commercial motor vehicle as defined in section 2 of chapter 159B.

“Registrar”, the Registry of Motor Vehicles.

Section 2.

No delivery driver shall make deliveries on any public way without a valid driver’s license or license to operate a motorcycle, regardless of whether the vehicle would require a license to be operated for a purpose other than making deliveries as arranged through a delivery network company. Making deliveries in violation of this paragraph shall constitute a violation of section 10 of chapter 90.

Any person found to be in violation of this section shall be subject to the penalties imposed by section 20 of chapter 90.

Section 3.

No delivery driver shall operate a motorized delivery vehicle on any way without wearing identifying apparel unless they are fully enclosed within a vehicle. Any person convicted of violating this section shall be subject to a civil fine of not more than \$250 dollars.

Section 4.

A delivery network company shall only authorize a person to create a delivery driver account and make deliveries using a motorized delivery vehicle if the person has a valid license to operate the intended motorized delivery vehicle pursuant to section 2 of this chapter.

No delivery network company shall allow a person to create a delivery driver account if the person has been convicted of the following:

Operating without a valid license in the past 5 years prior to their application; or

Operating without valid registration in the past 2 years prior to their application.

Delivery network companies shall contact the Registrar not less than every 6 months to verify the licenses associated with all delivery driver accounts. If any license is found to be invalid, the corresponding delivery driver account shall be immediately suspended until the license is again valid.

The Registrar shall promulgate all rules and regulations necessary for the implementation of this chapter.

51 SECTION 2. Section 31 of chapter 90 of the general laws, as appearing in the 2022
52 official edition, is hereby amended in the first sentence by inserting after the word “trailer” the
53 following text:- or motorized delivery vehicle as defined in section 1 of chapter 159B1/2.

54 SECTION 3. Section 1 of chapter 90C of the general laws is hereby amended by
55 inserting in line 22, after the words “chapter 90,” the following text:- and a motorized delivery
56 vehicle as defined in section 1 of chapter 159B1/2.